



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing five judgments on Tuesday 12 November 2019 and 61 judgments and / or decisions on Thursday 14 November 2019.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 12 November 2019

[S.A. Bio d'Ardennes v. Belgium \(application no. 44457/11\)](#)

The applicant company, [S.A.] Bio d'Ardennes, is a Belgian limited company with its registered office in Bastogne (Belgium). The case concerns its compensation claim following the compulsory slaughter of cattle belonging to the company.

Trading as a beef producer, the company bought 27 heads of cattle of Portuguese origin in July 1998, then 62 more in August 1998, and placed them on its farms. In March 2000 the veterinary inspector notified the company of an outbreak of brucellosis in one of its herds and served it with an order to slaughter the animals concerned. On 22 March 2000, 118 heads of cattle were slaughtered. On the same day, another outbreak of brucellosis was detected and another slaughter order was served and executed. Finally, on 28 April 2000, in accordance with the Law of 24 March 1987 on animal health, 76 heads of cattle were seized and were also slaughtered.

On 26 July 2000 the veterinary services of the Animal Health Administration of the Ministry for Small and Medium-sized Enterprises and Agriculture (succeeded in 2003 by the Federal Agency for the Safety of the Food Chain, the AFSCA) refused to pay out the slaughter compensation requested by the company for 253 heads of cattle on the basis of Article 23 § 3 of the Royal Decree of 6 December 1978 on the prevention of bovine brucellosis. They found that the applicant company had committed numerous infringements which had resulted or could have resulted in the spread of the contamination to its entire livestock.

In December 2001 the applicant company brought proceedings against the Belgian State in the appropriate court seeking compensation for its slaughter-related losses. In November 2003 the AFSCA replaced the Belgian State as respondent in the proceedings. In February 2006 the applicant company served notice for the approved association DGZ to be joined to the proceedings, claiming that this association had failed to provide it with the correct information, otherwise it would not have bought the Portuguese cattle. In February 2007 the court dismissed all the applicant's claims. The Court of Appeal ruled that AFSCA's conduct had been legal, legitimate and fair. The Court of Cassation quashed the judgment in so far as it addressed the liability of the DGZ and referred that part of the case back to the Court of Appeal. On 22 February 2013 the Court of Appeal ordered the DGZ to pay an amount of 29,058.48 euros (EUR), corresponding to the value of 27 slaughtered heads of cattle. The applicant company and the DGZ appealed to the Court of Cassation and then reached a friendly settlement under which the DGZ paid compensation of EUR 55,000 for the loss of 62 heads cattle.

Relying on Article 1 of Protocol No. 1 (protection of property) to the European Convention on Human Rights, the applicant company alleges that the refusal to award it compensation for the slaughter of its cattle constituted a disproportionate interference with its right to the enjoyment of its possessions.

[A v. Russia \(no. 37735/09\)](#)

The applicant, Ms A, is a Russian national who was born in 1998 and lives in Apsheeronsk (Russia).

The case concerns Ms A's allegation that she had been traumatised by witnessing her father being violently beaten by the police during his arrest when she was nine years old.

In May 2008 Ms A's father, a police officer at the time, was arrested in the course of an undercover operation organised by the Federal Service for Drug Control ("the FSKN"). The operation took place outside her school after her father had accompanied her to an end of year event and she had been getting into her father's car to go home. According to Ms A, the police knocked her father to the ground and repeatedly kicked him in his torso. She eventually managed to open the car door and run away. She was found in a state of shock in a street by her uncle and taken home.

Shortly afterwards, she was diagnosed with a neurological disorder, enuresis and post-traumatic stress disorder, which she says only improved several years later.

In July 2008 the applicant's mother complained to the prosecutor's office that her daughter being present at the beating had damaged her health and an inquiry was carried out.

However, the prosecuting authorities refused to institute criminal proceedings, finding that no physical force had been used against the applicant's father and therefore that the elements of a crime were not made out. They relied on statements by those who had been present at the incident, mainly the FSKN officers and attesting witnesses to the undercover operation, and records from the detention facility where the father had been held just after his arrest which reported no injuries.

The applicant's mother appealed to the domestic courts, but in October 2008 they endorsed the decision not to carry out a fully-fledged investigation.

The criminal proceedings brought against Ms A's father for selling cannabis were ultimately dropped in December 2009 because the evidence against him had been obtained unlawfully and was therefore inadmissible.

Relying on Article 3 (prohibition of inhuman or degrading treatment), Article 13 (right to an effective remedy) and Article 8 (right to respect for private and family life) of the European Convention, Ms A complains that witnessing her father's beating had serious consequences for her health. She argues in particular that the arrest took place near her school and therefore the authorities should have anticipated the likelihood of her being present. She also alleges that the pre-investigation inquiry into the incident was superficial and inadequate.

[Adamčo v. Slovakia \(no. 45084/14\)](#)

The applicant, Branislav Adamčo, is a Slovak national who was born in 1978. He is currently in detention in Leopoldov.

The case concerns his complaint that he was not given a fair trial when he was convicted for murder.

In 2001 Mr Adamčo was charged with murder related to an organised-crime contract killing. He was first acquitted of being an accomplice in that crime but the prosecution appealed and the charge was modified as identifying him as the actual killer.

The modified charge relied, among other things, on testimony by a witness who had also given evidence at earlier stages of the trial but who had then changed his version of events, incriminating the applicant. Mr Adamčo was convicted of murder and his subsequent ordinary appeal and an appeal on points of law were unsuccessful.

In 2011 he lodged a complaint with the Constitutional Court, arguing that modifications to the composition of the formations dealing with his case at the trial level and at the appellate level had been irregular and that he had not had access to prosecution observations in either of his two

appeals. He also submitted that the evidence from the prosecution witness had been unreliable as the witness had benefited from his actions because the prosecution had dropped cases against him.

The Constitutional Court rejected his complaint as inadmissible.

Relying on Article 6 § 1 and 3 (b) (right to a fair trial/tribunal established by law/right to adequate time and facilities for preparation of defence), Mr Adamčo complains about the formation of the trial court and appeal panels which found him guilty of murder; that he had no access to prosecution observations on his ordinary appeal and his appeal on points of law; and that his conviction was based to a decisive extent on the testimony of a witness who had an obvious motive to give evidence in favour of the prosecution rather than tell the truth.

Thursday 14 November 2019

[N.A. v. Finland \(no. 25244/18\)](#)

The applicant, Ms N.A., is an Iraqi national who was born in 1996 and lives in Finland.

The case concerns her father's expulsion to Iraq, where he was subsequently killed.

The applicant's father was a Sunni Muslim Arab from Baghdad. He served as a major in the army under former Iraqi leader Saddam Hussein and then for an American logistics company after the fall of that regime. Between 2007 and 2015 he worked in the Iraqi Office of the Inspector General, part of the Interior Ministry, where he was an investigator and then a leading officer on human rights crimes and corruption cases. He often had to investigate intelligence service officers or officers in militia groups. His work became more dangerous when Shia militia gained prominence.

He was investigating a case in 2015 when he had a disagreement with a colleague, who allegedly belonged to a leading Shia militia group, the Badr Organisation. The colleague assaulted the applicant's father and insulted him but was then transferred to the intelligence service and promoted. In February 2015 there was an attempt on the applicant's father's life when someone tried to shoot him. He reported the attack but later concluded that it was not being investigated. Feeling that he would not be protected in Iraq or receive any justice, he resigned in March 2015.

In April 2015 a bomb exploded in the family car just after the applicant's father and mother had got out of it and in May of that year the applicant herself was the victim of an attempted kidnapping.

The family arrived in Finland in September 2015 and the father sought international protection. The authorities rejected his asylum application in December 2016, the Immigration Service accepting his account of the facts but deciding that Sunni Arabs did not *per se* face persecution in Iraq.

An appeal by the applicant's father was dismissed by the Helsinki Administrative Court in September 2017. It held that he faced no danger owing to his past work for the regime of Saddam Hussein or the American logistics company. There was no proof that the attacks on him had been due to his conflict with his former colleague at the Interior Ministry, rather the general security situation in Iraq was to blame. There was also no real risk of persecution owing to his Sunni background.

The applicant's father returned to Iraq in November 2017 under assisted voluntary return. In December 2017 the applicant learned that her aunt's apartment, used previously by the family as a hiding place, had been attacked. Later that month she was informed that her father had been killed by unidentified gunmen. According to documents submitted by the applicant her father was shot three times in a street in Baghdad.

The applicant complains that her father's expulsion to Iraq violated Article 2 (right to life) and Article 3 (prohibition of torture and of inhuman or degrading treatment). She argues that the Finnish authorities risk' assessment was not undertaken with the necessary diligence and was in clear conflict with the Strasbourg Court's case-law.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tuesday 12 November 2019

Name	Main application number
Korobov v. Russia	60677/10
Sergeyev v. Russia	29384/14

Thursday 14 November 2019

Name	Main application number
Bećirović and Others v. Bosnia and Herzegovina	44304/16
Hudorović v. Croatia	14782/18
Klasić v. Croatia	79249/13
Palešćak v. Croatia	20207/16
Tsigaras v. Greece	12576/12
Takács and Others v. Hungary	58773/18
Tiborczné Pap and Others v. Hungary	57223/18
Magassouba v. the Netherlands	37153/17
Gadanec-Ketikidis v. North Macedonia	33879/16
Haruni v. North Macedonia	8082/15
Jakimovski and Kari Prevoz v. North Macedonia	51599/11
A.S. v. Poland	58012/10
Cieśla v. Poland	70345/14
Deresz and Others v. Poland	17570/18
Dołomisiewicz v. Poland	25481/16
Gogolek v. Poland	66094/13
Indecy v. Poland	45777/18
Jakubowska v. Poland	7211/14
Leszniewska v. Poland	5313/12
Libicki v. Poland	74002/13
Piskorski v. Poland	80959/17
Plichta v. Poland	54127/16
Średnicki and Others v. Poland	373/10
Bârsan and Others v. Romania	37944/15
Ötves and Others v. Romania	34352/15
Popoiu v. Romania	41142/16
Abzalov v. Russia	8195/18
Akuginova and Others v. Russia	4877/06
Burik v. Russia	20241/18
Dyatkinskiy v. Russia	20800/18
Ilovayskiy and Others v. Russia	40915/17

Name	Main application number
Korkin v. Russia	12756/18
Korkotenkov v. Russia	71325/17
Kushmanbetov v. Russia	33071/17
Lobanov and Others v. Russia	60555/16
Lukoyanov and Others v. Russia	20044/17
Makarskiy v. Russia	14746/18
Mironov v. Russia	56270/15
Petrov v. Russia	12883/18
Romanov and Others v. Russia	805/17
Rylov and Shariya v. Russia	49402/11
Samokhvalov v. Russia	17584/18
Sidorov and Others v. Russia	25085/18
Smetanin and Others v. Russia	23545/18
Sykhazhevskiy v. Russia	55087/17
Yamashkin and Others v. Russia	1235/18
Ivković-Pašćan v. Serbia	8653/10
Başboğa v. Turkey	52839/07
Gölbaş v. Turkey	13378/07
Kuzu v. Turkey	29728/08
Özdemir v. Turkey	38549/07
Yaktın v. Turkey	11963/12
Bayrashevskyy and Others v. Ukraine	29298/18
Dudar and Others v. Ukraine	64844/10
Kosyan v. Ukraine	32135/09
Kroshnyy v. Ukraine	60895/09
Nekhoroshkin v. Ukraine	53548/09
Onyshchenko and Others v. Ukraine	54434/18
Petruk and Others v. Ukraine	1343/19
Sverdlyk and Siliverstov v. Ukraine	57088/12

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.